		Plaintiff and considered and rejected by the Court in its ruling on the Motion to Compel Arbitration. The Court previously held that fraud in the inducement will not render an arbitration agreement unenforceable if the fraud does not specifically go to the making of the agreement to arbitrate itself. Thus, the fact that Defendant is arguing that Plaintiff misrepresented information in connection with opening the account does not mean the agreement to arbitrate is unenforceable. Plaintiff argues that Defendant improperly refused to provide substantive responses to his interrogatories before his time to oppose the Motion to Compel Arbitration. Again, this fact could have been raised in Plaintiff's prior opposition. Plaintiff makes reference to the fact that Defendant's supplemental responses identify the alleged agreement documents as the Deposit Agreement, Funds Availability Policy, and Signature Card but Plaintiff offers no explanation as to how this supplemental response warrants reconsideration of the Court's order. Plaintiff also states that Defendant claims in its supplemental responses that Plaintiff breached the Deposit Agreement by misrepresenting information when the account was opened. Again, Plaintiff offers no explanation as to how this response warrants reconsideration and, as discussed above, any fraud that occurred when the account was opened would not render the arbitration agreement unenforceable. Moving party to give notice.
114	Selene Finance v. Kirton, 2024-01412902	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT – CONTINUED DUE TO PENDENCY OF APPEAL The hearing on Plaintiff Selene Finance, LP's renewed motion for leave to file a First Amended Complaint is CONTINUED to OCTOBER 12, 2026, at 9:00 a.m. in Department N14. No further briefing will be permitted. The Court finds that the proposed amendments to the Complaint are embraced by the pending appeal. A petition for review is pending before the California Supreme Court (S297655).

		The court notes that it "has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown." (Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 175.) "Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails." (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) CASE MANAGEMENT CONFERENCE CURRENTLY SCHEDULED FOR 09/21/2026 IS CONTINUED TO 12/07/2026 at 1:30 p.m. Clerk to give notice.
115	Torossian v. Jalali-Bidgoli, 2025-01493940	MOTION TO SET ASIDE/VACATE DISMISSAL – GRANTED WITH CONDITIONS Plaintiff Jack Torossian, proceeding in pro per, moves pursuant to Code of Civil Procedure section 473(b) for an order vacating the dismissal entered on 04/27/2026. The dismissal was entered when Plaintiff failed to appear at a hearing on an OSC to dismiss for failure to appear at a previous hearing. Plaintiff argues that the "dismissal resulted from mistake, inadvertence, and excusable neglect arising from overlapping and continued litigation proceedings, calendaring confusion caused by the Court's continuance of operative discovery matters, and an incomplete procedural picture concerning the active prosecution status of this matter at the time dismissal was entered." Defendant Sharmin Jalali Bidgoli, proceeding in pro per, opposes the motion, arguing that a "litigant who is ordered to appear and explain why his case should not be dismissed, and who then fails to appear, has not made an excusable mistake." "The law favors resolution of cases on their merits, and because it does, any doubts about whether Code of Civil Procedure section 473 relief should be granted must be resolved in favor of the party seeking relief from default. Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial